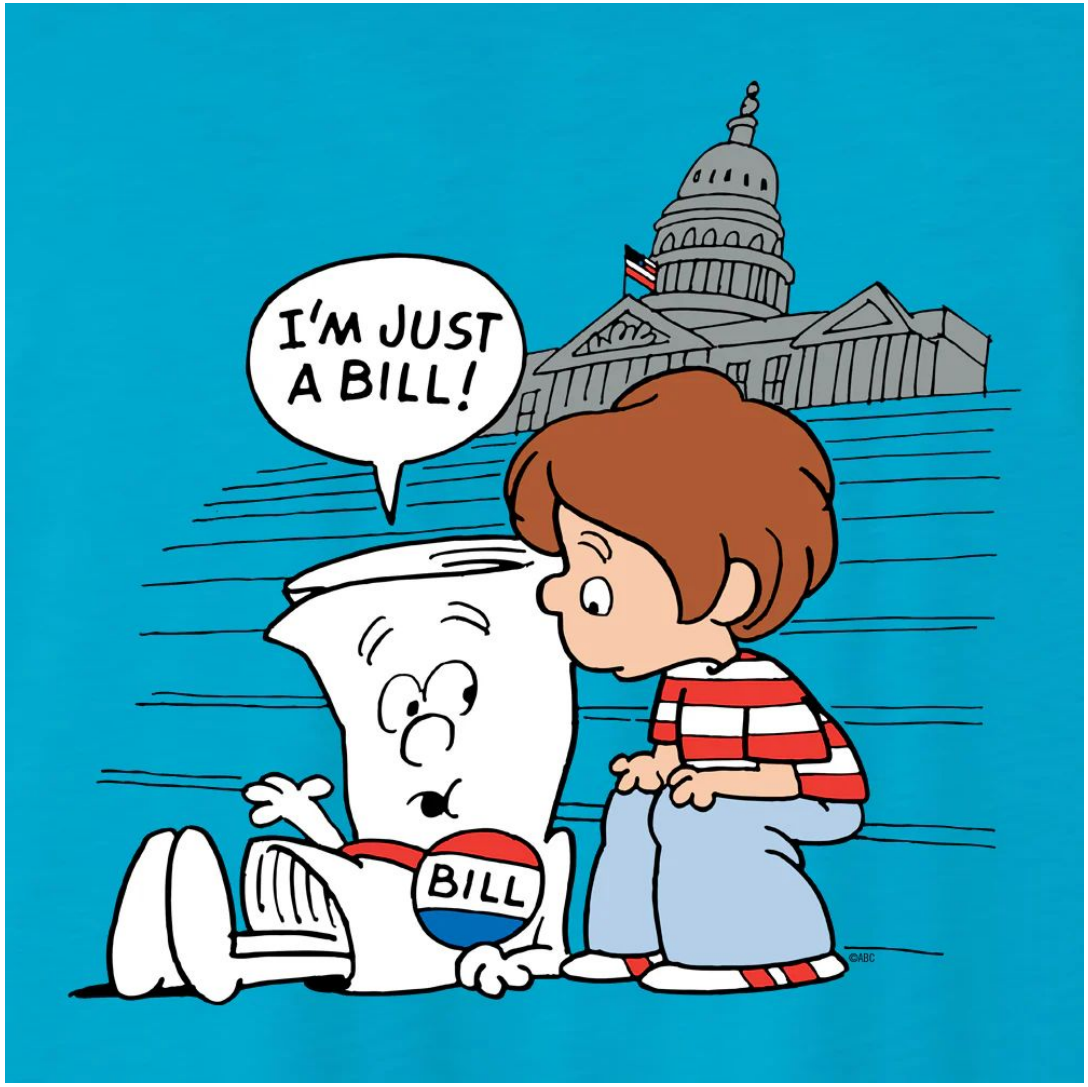
Great Falls, MD

Ice Skating!

Today: Courts & Legislatures

How Laws Are Made



Limiting Doctrines

Desuetude - No use of outdated laws for selective enforcement

Legality - Law must be clear, ascertainable and non-retrospective

Vagueness - Statutes must be clear enough that an ordinary person will know whether their conduct is criminal or not.

Lenity - Where ambiguity exists in the interpretation of a criminal statute, courts should read the statute to support narrow enforcement.

Why Do These Doctrines Exist?

Liberty - Punishment requires deliberate authorization by the people's representatives

Fair notice - Citizens should know what's criminal in advance

Legislative supremacy - Elected representatives, not judges, decide what's criminal

Arbitrary and Capricious

If courts do not employ all these tools, law enforcement may become arbitrary and capricious, enforced only when a person with enough power wants that law to be enforced.

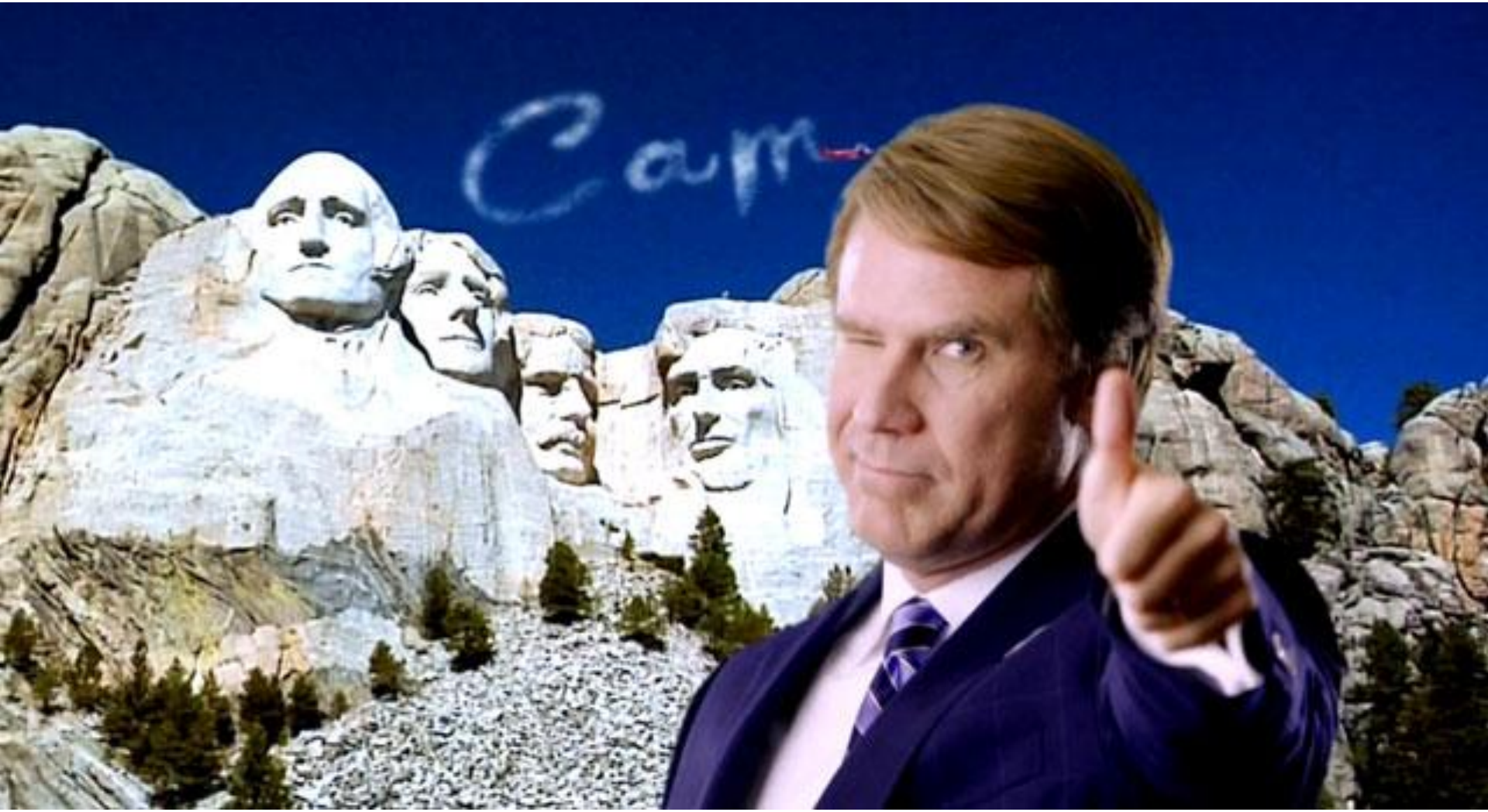
Adultery

Adultery is a crime in Alabama, Arizona, Florida, Georgia, Idaho, Illinois, Kansas, Massachusetts, Michigan, Minnesota, Mississippi, New York, North Dakota, Oklahoma, South Carolina, Virginia and Wisconsin.

Penalties range form a $10 fine in Maryland to a up to four years in prison in Michigan.

Why is it still illegal?

Political Market Failure



Robertson

Everyone knows that upskirting is wrong. Why not allow for prosecution under the existing statute that prohibits secretly photographing “another person who is nude or partially nude”?

Bentham Says:

“The minimum of punishment is more clearly marked than its maximum. What is too little is more clearly observed than what is too much. … The irregularities in the force of temptations compel the legislator to increase his punishments, till they are not merely sufficient to restrain the ordinary desires of men, but also the violence of their desires when unusually excited.”

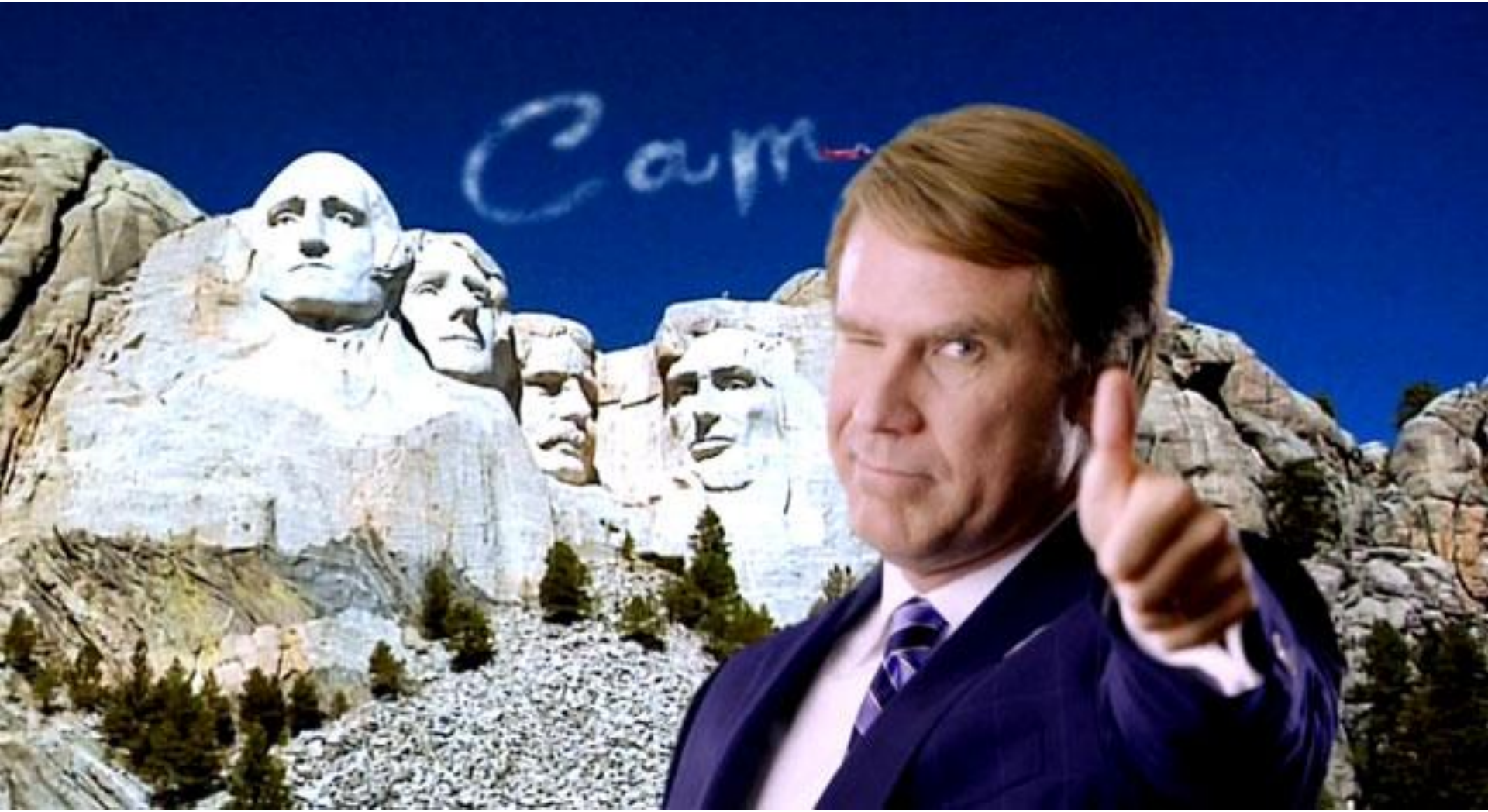
Asymmetric Error Correction

What kinds of court errors are likely to be corrected by the legislature?

Laws that under-punish behavior the public dislikes are a prime target for elected officials.

Laws the over-punish that same behavior are unlikely to be remedied.

Political Market Failure



Legislatures Know This

Many legislatures offload the task of paring back the criminal law to blue-ribbon commissions. This can deflate the political problems at the federal, state, and local level. Voting for what expert stakeholders recommend is easier than voting on individual statutes that reduce the scope of the criminal law.

Commissions Don’t Always Work

It has worked in many states across the country.

We tried it here in the District and it almost worked, but Congress & the President blocked it because they were worried about political blowback in the upcoming election.

Were they right that District reform would doom their electoral chances?

Federal Corruption Laws

State and federal corruption is a pervasive problem. Federal prosecutors brought many cases using wire fraud as the federal hook.

McNally v. United States (1987)

"We read § 1341 as limited in scope to the protection of property rights. If Congress desires to go further, it must speak more clearly than it has."

Congress Responded

§ 1346: "'scheme or artifice to defraud' includes a scheme or artifice to deprive another of the intangible right of honest services."

Skilling v. United States (2010)

"We now hold that § 1346 criminalizes only the bribe-and-kickback core of the pre-*McNally* case law."

Honest Services Restoration Act, etc. Fail

That was 15 years ago. To many wealthy people, gratuities appear to be a protected form of “speech”. The public hates this.

McNally v. United States (1987)

Case	Holding	Congressional Response
McDonnell (2016)	Arranging meetings for benefactor not "official acts"	None
Kelly (2020)	Bridgegate not fraud—no "money or property" sought	None
Ciminelli (2023)	Rigged bidding info not "property"	None
Snyder (2024)	Post-action gratuities not covered—only pre-action bribes	None

Broader Context

Citizen United was decided the same year as *Skilling* (2010), and corporate money has seen greater protection and greater influence ever since.

Bearden v. Georgia (1983):

“If the probationer could not pay despite sufficient bona fide efforts to acquire the resources to do so, the court must consider alternate measures of punishment other than imprisonment.”

No debtors' prisons: state can't jail people for being too poor to pay.

1991: Offender-Funded Probation

Private companies supervise probationers, collect payments, charge monthly "supervision fees"

Key legal move: fees ≠ fines. Fines = punishment. Fees = “administrative costs”

Is this consistent with *Bearden*?

2012 Estimates

- 1 in 25 Georgia adults on probation
- Majority of misdemeanor probationers supervised by private companies
- Roughly $40M extracted annually from low-income probationers

2015: Georgia House Bill 310

- Three-month cap on "pay-only" probation
- Required ability-to-pay hearings before incarceration
- Authorized conversion of unpaid fines to community service
- Created Department of Community Supervision

Currently

- 1 in 25 Georgia adults on probation
- Majority of misdemeanor probationers supervised by private companies
- Roughly $40M extracted annually from low-income probationers

Broader Context

People are still prosecuted for swearing in public; conduct once prosecuted as corruption is now legal.

Whether these patterns are problems—and what might fix them—remains contested.

Next Up

Prosecutors!